

Petitioner Drill Tech Drilling & Shoring, Inc. ("Petitioner") filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice* filed by Robert D. Ayers. The Motion is **granted**. No appearance is required on May 13, 2026.

### **Background**

On December 3, 2025, Petitioner filed Notice of Hearing, through Counsel Holland & Hart, LLP, and the Verified Application for Admission of Robert D. Ayers to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Robert D. Ayers, and the Declaration of Counsel Matthew Hippler. The Proof of Service shows that service was accomplished via electronic service and First Class Mail on December 3, 2026, including service to the Office of Special Admissions of the California State Bar. The Court did not receive timely oppositions to this Motion.

### **Analysis**

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Robert D. Ayers declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Ayers is an attorney licensed to practice in the States of Texas, Utah, Wyoming, Washington and in the Federal District Courts of Texas, Wyoming, and North Dakota. He represents that he is employed by Holland & Hart, LLP. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

### **Ruling**

1. Defendant's motion is **granted**.
2. Robert D. Ayers, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case.
3. Counsel Hippler is ordered to prepare and e-file a proposed order granting Verified Application of Robert D. Ayers to appear as Counsel *Pro Hac Vice*, with a copy of this ruling attached thereto.
4. No appearance is required on May 13, 2026.

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19. 9:01 AM CASE NUMBER: C24-00366

CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.

\*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE FROM DEFENDANT DAVID WHITE & ASSOCIATES WITH REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE  
FILED BY: DRILL TECH DRILLING & SHORING, INC.

**\*TENTATIVE RULING:\***

**Summary**

This tentative ruling applies to Lines 19, 20, 21 and 22. By stipulation and order, the following motions were consolidated by the Parties for hearing on Department 16's May 13, 2026 law and motion calendar:

1. Plaintiff Patricia Mainer's Motion to Compel Further Responses from Defendant David White & Associates to Amended Requests for Admission, Set One;
2. Plaintiff Drill Tech Drilling & Shoring's Motions to Compel from Defendant David White & Associates Further Responses to Form Interrogatories, Set Two,
3. Plaintiff Drill Tech Drilling & Shoring's Motions to Compel Further Responses from Defendant David White & Associates to Amended Requests for Admission, Set One, and
4. Plaintiff Drill Tech Drilling & Shoring's Motions to Compel Compliance from Defendant David White & Associates with Request for Production of Documents, Set One

The Court **vacates** all four (4) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

**Background**

In this case, Plaintiffs allege claims relating to "Key Person" life insurance policies purchased on behalf of Drill Tech Drilling and Shoring, Inc. employees. Specifically, Plaintiffs allege that the life insurance policies were represented as having a fixed benefit amount, when they in fact only had a variable benefit amount, resulting in compensatory and extra-contractual damages. Plaintiffs also claim punitive damages against Defendants and equitable relief in the form of contract reformation. Defendants deny these allegations and assert affirmative defenses.

Plaintiffs have served discovery and have remaining discovery disputes that they were unable to resolve informally with Defendants through the meet and confer process.

**Analyses**

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil

Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiffs filed their motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court also finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are four pending discovery motions on calendar in the matter, scheduled for May 13, 2026. These motions and opposition filed to date consists of over 340 pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes, requiring this Court to intervene. This Department manages 2700 active cases and prefers not to defer hearings on its already impacted motion calendar to conduct the diligent review necessary to rule on these motions.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

### **Ruling**

**Discovery Referee is appointed.** The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640 and makes the following orders:

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on May 13, 2026, and any and all subsequently filed discovery motions.
2. By no later than May 20, 2026, the Parties are ordered to meet and confer pursuant to Cal.

Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by May 22, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for May 13, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

**20. 9:01 AM CASE NUMBER: C24-00366**

**CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO AMENDED REQUEST FOR ADMISSION, SET ONE**

**FILED BY: DRILL TECH DRILLING & SHORING, INC.**

**\*TENTATIVE RULING:\***

See Line 19.

**21. 9:01 AM CASE NUMBER: C24-00366**

**CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO FORM INTERROGATORIES, SET TWO**

**FILED BY: DRILL TECH DRILLING & SHORING, INC.**

**\*TENTATIVE RULING:\***

See Line 19.